

HAUSFLEX™ GLOBAL AFFILIATE TERMS & CONDITIONS

Issued by HAUS INTERNATIONAL SDN. BHD.
Version 1.0

1. LEGAL STATUS & ACCEPTANCE

By registering under HAUSFLEX™, the Affiliate:

- Confirms legal capacity to contract
- Agrees to electronic consent (clickwrap binding)
- Acknowledges this Agreement is legally enforceable

Electronic acceptance shall have the same legal effect as a handwritten signature under applicable electronic commerce laws.

2. INDEPENDENT CONTRACTOR STATUS

Affiliate is:

- Not an employee
- Not an agent
- Not a franchisee
- Not a partner

Affiliate bears own tax obligations in respective jurisdictions.

3. REGULATORY COMPLIANCE STATEMENT (ANTI-PYRAMID SHIELD)

3.1 Hausflex is a product-based affiliate program.

3.2 Commissions are derived strictly from sale of legitimate products/services.

3.3 No commission is paid solely for recruitment.

3.4 No mandatory purchase requirement for eligibility to earn commission.

Affiliate acknowledges compliance with:

- Malaysia Direct Sales and Anti-Pyramid Scheme Act 1993 (where applicable)
- Applicable consumer protection laws
- Advertising standards

4. COMPANY RESERVED RIGHTS

The Company may at its sole discretion:

- Modify commission structures

- Adjust bonus tiers
- Suspend incentives
- Re-price products
- Terminate or merge Hausflex
- Convert affiliate system into another structure

Changes take effect upon publication on official platform.

5. DATA PROTECTION & CROSS-BORDER TRANSFER

5.1 All data collected under Hausflex belongs exclusively to the Company.

5.2 Affiliate consents to:

- Data processing under PDPA 2010 (Malaysia)
- Cross-border data transfer
- Use of analytics & AI tools

5.3 Company may use Database for:

- Marketing
- Business analytics
- Subsidiary integration
- JV operations

Affiliate waives any proprietary claim over such data.

6. NETWORK STRUCTURE OWNERSHIP

All network structures remain Company property.

Affiliate:

- Has no vested ownership rights
- Cannot claim inheritance rights
- Cannot demand migration compensation

Network restructuring is solely at Company discretion.

7. PROHIBITED CONDUCT

Strictly prohibited:

- Account stacking
- Commission manipulation
- Fake transactions
- Cross-recruitment into competitors
- Income misrepresentation
- Unauthorized product claims

Violation permits:

- Immediate termination
- Commission forfeiture
- Legal recovery of damages

8. INTELLECTUAL PROPERTY & DIGITAL ASSETS

All:

- Trademarks
- Logos
- Compensation plans
- Algorithms
- Software systems
- Marketing content

Are exclusive intellectual property of the Company.

Unauthorized reproduction constitutes infringement under applicable IP laws.

9. NON-SOLICITATION (24 MONTHS)

Affiliate shall not:

- Recruit Haus affiliates into competing systems
- Divert customers
- Use confidential data for competitor advantage

Duration: 24 months post-termination.

10. NON-DISPARAGEMENT

Affiliate agrees not to publish defamatory, harmful or reputation-damaging statements.

Applies globally and survives termination.

11. LIMITATION OF LIABILITY

To the maximum extent permitted by law:

Company shall not be liable for:

- Loss of profits
- Indirect damages
- Loss of business opportunity
- Data loss

Maximum aggregate liability limited to unpaid valid commissions within preceding 3 months.

12. INDEMNIFICATION

Affiliate agrees to indemnify Company against:

- Third-party claims
- Regulatory penalties caused by Affiliate
- False advertising
- Misrepresentation

13. FORCE MAJEURE

Company not liable for disruptions caused by:

- Government restrictions
- Regulatory changes
- Platform bans
- Natural disasters
- Cyber incidents

14. DISPUTE RESOLUTION (MALAYSIA DOMESTIC)

14.1 Mandatory Mediation

Disputes must first undergo internal mediation within 30 days.

14.2 Arbitration

Unresolved disputes shall be referred to arbitration under:

Asian International Arbitration Centre (AIAC), Kuala Lumpur

- Single arbitrator
- English language
- Confidential proceedings

Decision final and binding.

14.3 No Court Litigation

Affiliate waives right to:

- Class action
- Public litigation
- Jury trial (where applicable)

Subject to mandatory statutory rights under Malaysian law.

15. INTERNATIONAL EXPANSION CLAUSE

For Affiliates outside Malaysia:

Company reserves right to designate arbitration venue in:

- Singapore International Arbitration Centre (SIAC), or
- Dubai International Arbitration Centre (DIAC), or
- Any neutral jurisdiction determined by Company.

Governing law may be designated separately for international operations.

16. CLASS ACTION WAIVER

Affiliate agrees all disputes must be resolved individually.

No collective arbitration permitted.

17. LIQUIDATED DAMAGES

If Affiliate breaches:

- Non-solicitation
- Confidentiality
- IP protection

Company may claim liquidated damages equivalent to:

Minimum MYR 50,000 or proven commercial loss, whichever higher.

18. LIMITATION PERIOD

Any claim must be initiated within 6 months from date of incident.

Failure results in permanent waiver.

19. TERMINATION RIGHTS

Company may:

- Suspend account
- Freeze commissions
- Reassign network
- Terminate without cause

No compensation for loss of future income.

20. SEVERABILITY

If any clause unenforceable, remaining provisions remain valid.

21. ENTIRE AGREEMENT

Supersedes all prior oral or written representations.

22. AMENDMENT

Company may amend anytime.

Continued participation constitutes acceptance.